

Nicholson argues the court sustained the original demurrer because Bailey-Savage did not offer any authority establishing Nicholson owed a joint obligation to Plaintiffs of the same type as Bailey-Savage's, such that contribution could flow between them. The FACC adds citations to CCP §§875-876 and Civil Code §1432. CCP §875 provides for contribution among two or more defendants in a tort action. This is a labor and employment action, so it is not clear that this statute applies. Civil Code §1432 states: "a party to a joint, or joint and several obligations, who satisfies more than his share of the claim against all, may require a proportionate contribution from all the parties joined with him." A right of contribution is related to some former transactions, be it actual or implied, and may be the subject of an express contract. In the absence of an express contract the right may exist by operation of law, under which circumstance it exists as a complete legal entity only. (*Pacific Freight Lines v. Pioneer Express Co.* (1940) 39 Cal.App.2d 609.)

The mere citation to these code sections does not fix the deficiencies from the original Cross-Complaint. The Opposition does not explain how or why the allegations in the FACC are sufficient to sustain this cause of action.

The declaratory relief cause of action is derivative of the indemnity and contribution claims. Since those claims are insufficiently alleged, so is this claim.

3.

CASE #	CASE NAME	HEARING NAME
CVME2510655	ANCHELOWITZ VS INLAND PSYCHIATRIC MEDICAL GROUP, INC.	DEMURRERS

Tentative Ruling: OVERRULE as to the 1st, 2nd, and 4th causes of action and SUSTAIN as to the third cause of action, with 20 days' leave to amend.

GRANT the motion to strike.

This is a medical malpractice litigation initiated on September 10, 2025, by Plaintiff Louis Anchelowitz against Inland Psychiatric Medical Group, Inc. ("IPMG"), Chika Ugwu, PMHNP ("Ugwu"), and Syam P. Kunam, M.D. ("Dr. Kunam"). Plaintiff alleges he sustained injuries while under the care of IPMG and its medical professionals, including Dr. Kunam. Prior to July 31, 2024, Plaintiff had no right arm nerve injury, no functional impairment of the right upper extremity, and no history of injection-related complications. Ugwu prescribed Uzedy injections for Plaintiff, which medical assistant Adrianna Montrose ("Montrose") administered on July 31, 2024, and medical assistant Summer Garcia ("Garcia") administered on September 3 and October 1, 2024. During the September 3, 2024, injection, Plaintiff experienced an immediate electric shock-like sensation radiating through the right arm, consistent with nerve contact. Although Plaintiff reported the pain, Garcia continued injection. Plaintiff reported pain from the injection on September 8, October 7, November 4, December 2, and January 11, 2025. Plaintiff alleges Defendants created inaccurate records relating to Plaintiff's injections and failed to correct the inaccuracies even after Plaintiff submitted corrections.

The operative SAC filed March 20, 2026, asserts causes of action for (1) Professional Negligence (against all Defendants), (2) Negligence (Supervision) against IPMG and

Kunam, (3) Fraud (against all Defendants), and (4) Negligent Infliction of Emotional Distress (“NIED”).

Dr. Kunam and IPMG (“Defendants”) now demur to the SAC, arguing the first two causes of action fail to state facts sufficient, that the fraud claim fails to plead fraud with the requisite particularity, and NIED is not a standalone tort.

In opposition, Plaintiff maintains the SAC is sufficiently plead to assert causes of action for negligence and negligent supervision. Plaintiff asserts the SAC sufficiently alleges notice and causation. Alternatively, Plaintiff requests leave to amend.

In reply, Defendants argue Plaintiff’s untimely opposition should be disregarded. Even if it is considered, Plaintiff’s opposition does not cure the defects identified in the demurrer.

Plaintiff’s opposition, filed June 22, 2026, is untimely pursuant to Code of Civil Procedure section 1005, subdivision (b). Opposition papers must be served and filed at least nine (9) court days before the hearing date “unless otherwise ordered or specifically provided by law.” (Code Civ. Proc., § 1005, subd. (b).) Because Plaintiff served Defendants by first class mail, the period of notice “shall be extended five calendar days” upon service by mail. (Code Civ. Proc., § 1013, subd. (a).) Accordingly, Plaintiff was required to serve and file his opposition by July 15, 2026. Although Defendants argue the late filing prejudiced their ability to address Plaintiff’s assertions, in reply, Defendants argue the merits, which the court can treat as a waiver of the defect. (*Alliance Bank v. Murray* (1984) 161 Cal.App.3d 1, 7; *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Accordingly, the Court proceeds on the merits.

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2).) The demurring party must file a declaration stating how the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).) Plaintiff never replied to Defendant’s voicemail and subsequent meet and confer letter mailed. (Lam Decl., ¶2.) In the instant matter, the parties did not conduct a Code-compliant meet and confer as Defendants sent an email only. (Mahmoudi Decl., ¶3.)

Moving on to the merits, Plaintiff submits his own declaration attesting to facts relating to his case. This is extrinsic evidence for which the Court may not consider in ruling on the demurrer. (See, e.g., *Afuso v. United States Fid. & Guar. Co., Inc.* (1985) 169 Cal.App.3d 859, 852, disapproved on other grounds in *Moradi-Shalal v. Fireman’s Funds Ins. Cos.* (1988) 46 Cal.3d 287 [error for court to consider contents of release which was not part of any court record].) Thus, the declaration is not considered in the analysis of the merits.

Defendants argue this claim is conclusory and lacks causation facts.

In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal

connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence. (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606.)

Here, the SAC alleges that the uredy injection "must be administered subcutaneously using proper technique, including appropriate site selection, depth, and preparation." (SAC ¶12.) "Deviation from proper subcutaneous technique creates a foreseeable risk of nerve contact and injury." (*Id.* at ¶13.) Plaintiff alleges that when he reported the pain he experienced from the injection on September 3, 2024, "[d]espite this warning sign, the injection was continued. Garcia failed to properly prepare the injection and failed to pinch the skin." (*Id.* at ¶14.)

The complaint is sufficient if it alleges ultimate rather than evidentiary facts, and the plaintiff is required only to set forth the essential facts of the case with "reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) As pled, the SAC sufficiently alleges facts for Defendants to be acquainted with the nature, source and extent of the Plaintiff's claim. To that end, the Court overrules the demurrer as to the 1st cause of action.

As to negligent supervision, Defendants argue this claim is insufficiently pled as it contains no allegations of prior incidents, no notice, and no facts establishing how any purported lack of supervision caused the injury.

"'Liability for negligent hiring retention or supervision of an employee is one of direct liability for negligence, not vicarious liability.' [Citation.]" (*Philips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139.) An employer can be liable for negligent entrustment, hiring, or retention only if the employee is found to have been negligent. (*Diaz v. Carcamo* (2011) 51 Cal.4th 1148, 1159.) Since Plaintiff sufficiently alleged a cause of action for negligence, for purposes of demurrer, the SAC has sufficiently stated a cause of action for negligent supervision. As to this cause of action, the Court overrules the demurrer as to this cause of action.

Defendants argue Plaintiff's fraud claim fails to allege facts to the requisite specificity required.

The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.) Every element of this claim must be pleaded factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (*Lazar v. Superior Court* (1996) 12 Ca.4th 631, 645.) However, the specificity requirements of fraud are "relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts." (*Quelimane, supra*, 19 Cal.4th at 27.) Here, it is apparent Defendants necessarily possess knowledge of the facts.

The SAC alleges Defendants made false representations in medical records including Plaintiff “tolerated well” and incorrect dates. (SAC ¶¶37.) The SAC alleges these statements are false because Plaintiff suffered immediate injury on September 3, 2024. (*Id.* at ¶38.) Defendants knew these statements were false based on prior documented complaints. (*Id.* at ¶39.) On September 3, 2024, Plaintiff reported the stinging pain of the injection when Garcia administered it, and that despite this warning, the injection was continued. (*Id.* at ¶14.) On September 9, 2024, Plaintiff reported to Ugwu that the injection hit a nerve. (*Id.* at ¶15.) Plaintiff continued to report pain on October 7, November 4, and December 2024 and January 11, 2025. (*Id.* at ¶¶16-19.) Although Plaintiff submitted correction requests to IPMG’s records department, Defendants failed to correct the inaccuracies. (*Id.* at ¶¶25-26.) Plaintiff sustained nerve damage from the improperly administered injection. (*Id.* at ¶19.)

However, where the SAC falls short is allegation relating to justifiable reliance. The SAC fails to allege how the false medical records were justifiably relied on by Plaintiff. As such, the Court sustains the demurrer with 20 days leave to amend.

Defendants argue NIED is not a standalone tort and is duplicative of negligence. Defendants argue it should be dismissed without leave to amend.

Negligent infliction of emotional distress is not a separate tort but is a species of negligence. (*Downey v. City of Riverside* (2024) 16 Cal.5th 539, 547; *Marlene F. v. Affiliated psychiatric Med. Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) Because NIED is a form of negligence, “[the] traditional elements of duty, breach of duty, causation, and damages apply. (*Downey, supra*, 16 Cal.5th at 547, (internal quotes omitted); *Arista v. County of Riverside* (2018) 29 Cal.App.5th 1051, 1062-1063.) Where a plaintiff is physically injured, damages for resulting emotional distress are recoverable as “parasitic” damages. (*Potter v. Firestone Tire & Rubber co.* (1993) 6 Cal.4th 965, 981.)

Courts have long held that a duplicative cause of action is also a basis for sustaining a demurrer. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268 [duplicative cause of action for breach of fiduciary duty subject to dismissal by way of demurrer]; *Award Metals, Inc. v. Superior Court* (1991) Cal.App.3d 1128, 1135 [demurrer properly sustained to duplicative negligence cause of action].) However, although other courts have disagreed regarding a “duplicative” challenge, the Court should not sustain the demurrer at the pleading stage on that basis. (See *Palm Springs Villas II Homeowners Assn., supra*, 248 Cal.App.4th at 290.) This is especially true since the *Blickman Turkus Court* explained: “This is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890.)

As to the Motion to Strike, Defendants concurrently move to strike portions of the SAC concerning Plaintiff’s prayer for punitive damages, to wit: ¶¶5, 37-41, 45, 47-51.

A motion to strike can be used to attack claims for damage (e.g., punitive damages) that are not supported by the cause of action as pleaded. “[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.” (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) Here, except for negligence,

Plaintiff has not alleged any viable claim based on an intentional tort. Code of Civil Procedure section 425.13 requires a plaintiff to obtain leave of court before asserting a claim for punitive damages in any action arising out of the professional negligence of a "health care provider." Without such an order, the punitive damages claim is subject to a motion to strike. (*United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4th 500, 504-505.)

"The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code." (Code Civ. Proc., § 425.13, subd. (a).)

4.

CASE #	CASE NAME	HEARING NAME
CVME2510655	ANCHELOWITZ VS INLAND PSYCHIATRIC MEDICAL GROUP, INC.	MOTIONS TO STRIKE

Tentative Ruling: GRANTED, see above.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600179	HIGHTOWER VS AUSTIN	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: GRANTED.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2105307	WALKER VS FCA US, LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: DENY as untimely; no good cause is shown.

Plaintiffs Nathan Walker and Christine Walker filed this Song-Beverly action on 6/22/21 regarding their purchase of a 2017 Chrysler Pacifica on 9/13/16 with defects related to its electrical system, transmission, engine, stalling, and collision warning system, among others. The operative Second Amended Complaint, filed 6/16/23, against Defendants FCA US LLC and Hemet Chrysler Dodge Jeep Ram, asserts: (1) Civil Code section 1793.2(d); (2) Civil Code section 1793.2(b); (3) Civil Code section 1793.2(a)(3); (4) express warranty; and (5) implied warranty. The parties exchanged only written discoveries; no deposition was taken and no discovery motion was filed. Defendant offered \$172,500 to settle before trial, which Plaintiffs accepted on 6/6/23.

On 6/13/24, the parties filed a joint stipulation to dismiss. The court entered dismissal on the same day.